

EXHIBIT 1: DATA CORRECTION TIMELINE & STATUTORY VIOLATIONS

Subject [REDACTED]
Respondent: Prior Lake-Savage Area Schools (ISD 719)
Statutory Focus: Minnesota Government Data Practices Act (Minn. Stat. § 13.04, Subd. 4) and FERPA (20 U.S.C. § 1232g)

Executive Summary

This exhibit documents a sustained, multi-year failure by Prior Lake-Savage Area Schools (ISD 719) to fulfill its statutory obligations regarding the correction of inaccurate student data. Despite formal, written challenges initiated by the Complainant in December 2024—and explicit cure notices provided in January 2025—the District maintained a primary incident record that significantly misrepresented the severity of a physical weapons assault against a minor student. Furthermore, upon refusing to amend the inaccurate data, the District willfully failed to append the parent’s legally mandated “Statement of Disagreement” to the record, resulting in the ongoing maintenance and dissemination of misleading educational records.

Index of Evidence Assets

Asset	File Name	Relevance & Statutory Impact
Exhibit 1A: The Disputed Record	CO-behavior report 10_29_24.pdf	The internal Behavior Detail Report submitted by [REDACTED] documenting the District’s inaccurate narrative that the student was struck “twice” (minimizing the actual 5 impacts).

Asset	File Name	Relevance & Statutory Impact
Exhibit 1B: Initial Correction Request	20241206_InitialCorrectionRequest_FULL_THREAD.pdf	Formal email from Complainant explicitly correcting the investigation findings and citing victim testimony of 5 strikes, initiating the 30-day statutory window under Minn. Stat. § 13.04.
Exhibit 1C: Statutory Notice & Notification of Deficiency	20250104_StatutoryNotice_FULL_THREAD.pdf	Contains the January 4th follow-up reminding the District of the impending deadline, AND the January 15th email explicitly notifying the District that the "Correction of Inaccurate Records" remains an "Unresolved Issue," eliminating any claim of administrative oversight.
Exhibit 1D: The Ambiguous District Response	January 8 2025 Dr Thomas Response.pdf	Letter from Superintendent Michael Thomas stating that "records... will reflect different reports," but failing to issue a formal determination to either "Correct" or "Refuse" the data, bypassing statutory procedure.

Asset	File Name	Relevance & Statutory Impact
Exhibit 1E: Verification of Non-Compliance	20260422_FinalAprilResponse_FULL_THREAD.pdf	The District's final data production in April 2026. Definitively proves that the District never amended the 10/29/24 incident report, nor did they attach the mandatory Statement of Disagreement required by Minn. Stat. § 13.04, Subd. 4.

Exhibit 1: Timeline of Data Correction Requests and Statutory Violations - Incident Report [REDACTED]

Subject: Prior Lake-Savage Area Schools (ISD 719) Incident Record dated 10/29/2024

Claimants: Seanmichael and [REDACTED]

Legal Authority: Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g; Minnesota Government Data Practices Act (MGDPA), Minn. Stat. § 13.04.

I. Introduction

This exhibit documents a sustained failure by Prior Lake-Savage Area Schools (the "District") to fulfill its statutory obligations regarding the correction of inaccurate student data. Despite formal written challenges initiated in December 2024, the District has maintained a primary incident record that misrepresents [REDACTED] ("Caty"). As of April 2026, the District remains in non-compliance with MGDPA and FERPA requirements for data accuracy and the inclusion of parental statements of disagreement.

II. The Disputed Record (Source: Behavior Detail Report 10/29/24)

The District's internal Behavior Detail Report for the incident on October 29, 2024, contains the following narrative [cite: 1, 2, 3]:

Field	District Entry
Incident Details	"picked up a stool in class and hit another student on the side of the head with it, twice"
Participant Role	Victim

The Correction Sought: The parent requested that the record be updated to reflect that [REDACTED] was struck **five (5) times** (three times initially, followed by two more hits after a five-minute interval), as consistently reported by the victim.

III. Chronological Timeline of Requests and Violations

Date	Action / Communication	Source Reference
12/06/2024	Formal Correction Request: [REDACTED] emailed Emily Herman (Executive Director) explicitly correcting investigation findings. Cited victim testimony of 5 hits vs. district's 2.	Email [REDACTED]
01/04/2025	Notice of Statutory Timeline: Follow-up email reminding District of Minn. Stat. § 13.04 mandate to address inaccuracies within 30 days.	Email [REDACTED]
01/08/2025	District Response: Supt. Michael Thomas stated "input will be considered" and "records... will reflect different reports," but failed to issue a formal "Correct" or "Refuse" determination.	PDF Attachment (Supt. Thomas)
01/15/2025	Formal Notification of Deficiency: Parent identified "Correction of Inaccurate Records" as an "Unresolved Issue."	Email [REDACTED]
03/13/2025	Issuance of Summary Report: District finalized reports without updating the primary narrative to reflect the 5 hits.	Summary Report
04/26/2026	Verification of Non-Compliance: Response to a new data request confirms the 10/29/24 Behavior Report remains uncorrected and lacks the required alternate statement attachment.	2026 Data Request Response

IV. Identified Violations of Law

1. Failure of Timeliness (Minn. Stat. § 13.04, Subd. 4)

The District failed to resolve the data challenge within the 30-day statutory window. The request was submitted December 6, 2024; no definitive correction or denial with appeal rights was

issued by January 5, 2025.

2. Failure to Maintain Accurate Records (FERPA)

FERPA requires educational agencies to ensure records are not "inaccurate, misleading, or otherwise in violation of the privacy rights of the student." By maintaining a narrative that significantly minimizes the physical assault (2 hits vs 5), the District is maintaining a misleading record.

3. Failure to Provide Notice of Appeal

Under MGDPA, if a government entity determines data is accurate and refuses correction, it **must** provide notice of the individual's right to appeal that decision to the Commissioner of Administration. No such notice was provided to [REDACTED] O'Briens.

4. Failure to Attach "Alternate Statement" (Statement of Disagreement)

Minn. Stat. § 13.04, Subd. 4, requires that if a correction is refused, the district **must** attach the parent's statement of disagreement to the record. This statement must be disclosed whenever the underlying data is disclosed. The April 2026 data production proves the District failed to implement this mandatory attachment.

References

1. Email correspondence between [REDACTED] and PLSAS Leadership (Dec 2024 - Jan 2025).
2. District Response Letter from Superintendent Michael Thomas (Jan 8, 2025).
3. Behavior Detail Report (Incident Date 10/29/24, Submitted 10/31/24 by [REDACTED]) [cite: 1, 2, 3].

EXHIBIT 1A

Behavior Detail Report

Grade:

24-25 Prior Lake-Savage Middle

Total Demerits/Points: 0

Alignment:	Discipline		
Date/Time:	10/29/2024 8:01 AM	Submitted:	10/31/2024 8:02 AM
Damages:	0.00	Submitted By:	
Location:	Classroom		
Location Description:			
Context:	During School Hours		
Context Description:			
Incident Details:	picked up a stool in class and hit another student on the side of the head with it, twice		
Event 1:	Physical Agression/Contact		
Role:	Victim	Demerits/Points:	0
Injury:	No Injury		
Injury Description:			
Medical Service Provided:	No		
Participant Details:			
Resolution 1:	Parent Conference/Phone		
Assign Date:	10/31/2024		
Start Date:	10/31/2024	Start Time:	8:02 AM
End Date:		End Time:	
Behavior Admin Staff Name:			
Resolution Details:			

Parent/Guardian	Date
-----------------	------

Student	Date
---------	------

EXHIBIT 1B

Meeting Request

17 messages

[REDACTED] and [REDACTED]

Thank you for your response and for letting us know about the timeline of the ongoing investigation with the Prior Lake Police Department. We understand the importance of allowing [REDACTED] to focus on that process and appreciate you keeping us informed.

Following an email systems audit with our Technology department, we want to inform you that your original email from November 1, 2024 and November 4, 2024 follow-up email ("original email chain") regarding these allegations was filtered by our email security protocols. We have confirmed that the email system generates automated replies (i.e. the School Board email auto-reply) as an email enters the system. Then, the system reviews the content of the email and quarantines any messages based on established security protocols. Therefore, we can confirm that the School Board auto-reply email was sent to you but your original email chain was not delivered to any of the @plsas.org inboxes. We apologize this caused a delay in receiving your original email chain and we want to assure you that we are treating this matter with the utmost urgency and attention.

It is important to note that the school's role in addressing these concerns is separate and distinct from the law enforcement investigation. Our goal is to ensure a safe and supportive environment for all students and to thoroughly address the concerns raised. Conducting an initial interview is a critical step in our process, as it allows us to gather necessary information to proceed with any potential actions within the school's purview.

While we understand this week may not work for you, it is essential that we schedule this initial interview as soon as possible to ensure we are able to appropriately address the situation. Please let us know days and times within the next week (please note the district is closed November 27-29) that would work for you. If you are unable to meet in person, we can explore alternative options, such as a virtual meeting.

Regarding your request for incident reports:

1. Please find the attached incident report from the health class incident.
2. There is currently no incident report from the conversation on November 1st. Based on internal interviews, when asked if [REDACTED] would like to share a report with [REDACTED] it was stated that the preference was to communicate in writing and no verbal report was shared at that time. Therefore, the initial communication received on the sexual abuse allegations was not received until Friday, November 15th when you forwarded the screenshots of the original email chain that was quarantined by the email security protocols discussed above.

Thank you as we try to work together to address these concerns. Please feel free to reach out if you have additional questions or if there are any accommodations we can make to facilitate the intake interview.

[REDACTED] and Emily Herman

Incident Detail			
Incident ID:	017325		
Assigned:	Ch. 424	Status:	Unassigned
Date/Time:	11/26/2024 10:00 AM	Submitted:	11/26/2024 10:00 AM
Created:	11/26/2024	Submitted By:	11/26/2024
Title:	Title IX Coordinator Contact		
Location:	11/26/2024		
Location Description:	11/26/2024		
Notes:	11/26/2024		
Content Description:	11/26/2024		
Related Items:	11/26/2024		

Screenshot 2024-11-20 at 1.59.20 PM.png
77K

and

I hope this message finds you well. Allow me to take a moment to introduce myself—my name is Emily Herman, and I serve as the Executive Director of Administrative Services for Prior Lake-Savage Area Schools.

I am reaching out to follow up on the email sent by last week and to underscore the importance of connecting with you. Our priority is to address the concerns you have raised with the utmost care and urgency, and your collaboration is essential to moving forward effectively.

We understand that this is a challenging time and that coordinating schedules may be difficult. However, it is essential that we schedule an initial interview to ensure we can take appropriate steps to address the matter. Please let us know your availability for a meeting within the next few weeks (please note the district is closed November 27-29), either in person or virtually, so we can accommodate your preferences.

If there are specific needs or considerations you would like us to take into account, please don't hesitate to share. Your input and partnership are critical in helping us move forward effectively.

Thank you, and we look forward to hearing from you soon.
Emily and



Emily Herman

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]

Thank you for reaching out, and nice to meet you Emily.

I apologize for any delay in our response; this is our first time through this process and it can take time to research and identify how we can move forward while minimizing the impact on what has already been a traumatizing few months for our daughter in particular and family in general. We would like the interviews - for both the sexual assault as well as [REDACTED] was attacked with a weapon in health class on Oct 28th - be conducted by CornerHouse (<https://www.cornerhousemn.org>). Additionally, we would like to be provided with a copy of the maltreatment report(s) that have been filed for either of these events.

Thank you,

[Quoted text hidden]

School Board [REDACTED]

Mon, Nov 25, 2024 at 6:40 PM

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

[REDACTED]
PLSAS [REDACTED]

Hello Emily and [REDACTED]

We are reaching out to confirm the email sent Monday evening has been received.

Thank you,

[Quoted text hidden]

School Board [REDACTED]

Mon, Dec 2, 2024 at 9:20 AM

[Quoted text hidden]

[REDACTED] and [REDACTED]

Thank you for your follow-up. I was out of the office until today, as noted in my out of office reply on Monday evening. However, I appreciate the follow-up given the previous quarantined email you experienced. Also, I would like to take note that due to the sensitive and confidential nature of the allegations, [REDACTED] and I will not be including other entities on the email chain when we respond.

We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. It would be best that the written responses are either dropped off at or mailed to

Hidden Oaks or District Services Center to either [REDACTED] or myself. This would ensure the email quarantine process would not impede the delivery of the responses.

Please let us know at your earliest convenience which option you would prefer.

Thank you again for working with us as we try to effectively move forward with the investigation of the allegations presented.

Emily and [REDACTED]



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]

Thank you for your response, Emily - as your previous communications only indicated no one would be available Wednesday, I did not realize that [REDACTED] was also out of the office last Tuesday.

We agree the email quarantine process is problematic; given how hard it is for victims to come forward in the first place, it breaks my heart to think of how many complaints may have fallen through the cracks. As previously mentioned, I did not receive any failure to deliver notifications on the emails sent on the 1st or the 4th; that started happening on the 14th. As an IT professional with more than 20 years of experience in the field, I know that it's extremely unlikely for a system to behave differently given the same input without some kind of change being made to that system. This is moot, however - the district is obligated to monitor and review filtering activities, and given [REDACTED] was aware an email with a complaint was coming due to his interaction with [REDACTED] on Nov 1st, and the school was notified we were keeping [REDACTED] home from school due to concerns for her health, wellbeing, and safety - as noted in the emails sent to the attendance inbox on the 4th, 5th, and 6th - the position that it was not possible for the school to know about the complaint until the 14th simply does not pass the smell test. Given our struggles communicating to date, we find the auto-reply provided by the school board a helpful audit that our message has reached plsas's network, and fail to see how including Joe's immediate supervisor on these communications is out of line. If there is someone in-between [REDACTED] and Michael that we should be including instead please let us know.

Since the 1st, We have made multiple requests for information relating to the school's obligation to report the assault with a weapon that occurred in class with a teacher present. Our daughter is still struggling with concussion symptoms to this day, and requires months of medical intervention to address the physical and cognitive impact caused by the assault. We have also made multiple requests for an explanation as to how this incident could have so little consequences for the aggressor. Those requests have been consistently ignored by both [REDACTED] and yourself. This is a strong indication of bias in favor of the school district, which is a concern for us as the other abuse also frequently occurred in a classroom with a teacher present. [REDACTED] is entitled to have unbiased and reliable investigators and decision makers involved in her complaint. To be clear, you are denying us this option?

Thank you,
[REDACTED]

[Quoted text hidden]

School Board [REDACTED]

Mon, Dec 2, 2024 at 8:17 PM

[Quoted text hidden]

Hello Emily and [REDACTED]

We are reaching out to confirm the email sent the evening of 12/2 has been received. Specifically, we are holding on the following -

1. Confirmation that the school is denying our request to have Catelyn's interview be conducted by a demonstrably unbiased and reliable investigator.
2. We continue to hold on information as to the steps the school has taken relating to their mandated reporter obligations after learning a teacher failed to notice (or chose not a report) a child getting hit in the head 5 times with a chair while under their direct supervision, as well as the steps taken towards that obligation after learning of the subsequent assault Nov 1st; this was first requested Nov 1st.
3. We continue to hold on information as to the rationale behind classifying the weapons assault as a lesser offense, also initially requested Nov 1st.

Thank you,

[Quoted text hidden]

School Board [REDACTED]

Wed, Dec 4, 2024 at 8:18 PM

[Quoted text hidden]

[REDACTED] and [REDACTED]

The District has processes and procedures in place to conduct appropriate investigations of allegations of misconduct. To be clear, the District very much wants to investigate the allegations you have shared. The District is particularly concerned about the allegations in your email from Monday that "other abuse also frequently occurred in a classroom with a teacher present." To investigate these serious allegations, the District needs additional information from [REDACTED] about what specifically occurred.

The District wants to gather that information in a manner that will not harm Caty. As previously shared, we would be willing to have her submit written responses to questions. Or, if specific questions may be too much, we'd ask that [REDACTED] share the allegations she remembers in as much detail as possible, including the dates or approximate time frame of events, who was involved, who may have witnessed them, and what occurred. Either process would allow you and her service providers to determine the best time and manner in which to respond and to let [REDACTED] decide whether she would like to orally respond with someone else writing the answers or write them down herself. Of course, we remain available to interview [REDACTED] either in person or virtually as well.

In the alternative, if [REDACTED] has already participated in a recorded interview with CornerHouse, law enforcement, or another entity about the allegations, you could provide a copy of that recording or transcript to us for use in the investigation. The District cannot access such records on its own. The District does not use private entities such as CornerHouse to conduct District investigations, in part, because of the District's responsibilities with respect to data privacy of other students and

staff. Law enforcement frequently use CornerHouse or similar entities but law enforcement have different data privacy requirements than school districts.

The District is denying your specific request to have CornerHouse interview [REDACTED] for the District investigation. However, that does not mean that the District's investigation will be biased and unreliable. The District's employees who are trained in Title IX investigations have received training in conducting unbiased and fair investigations. It is in the District's best interest to accurately determine what happened and whether any action is required in response.

Please understand that the District cannot provide all the information you seek because it is required to comply with data privacy laws. The District is unable to provide you information regarding any maltreatment reports. Pursuant to Minnesota Statutes Section 260E.35, subd. 3, reports of maltreatment are classified as "confidential." Under the Minnesota Government Data Practices Act, that means the reports are not public and inaccessible to anyone, including a person who is the subject of the report. Minn. Stat. 13.02, subd. 3. If you are looking for information about whether and/or who made such reports, that information is private personnel data on District employees pursuant to Minnesota Statutes Section 13.43.

We understand you have a concern about what you have characterized as "classifying the weapons assault as a lesser offense." The District's investigation concluded that another student hit [REDACTED] in the head two times with a chair. Any consequences or discipline issued to the other student are private educational data on that student pursuant to Minnesota Statutes Section 13.32 and the Family Educational Rights and Privacy Act ("FERPA"). While we understand this response can be frustrating, the District must comply with state and federal law.

We also want to clarify that Principal Kuboushek's direct supervisor is Dr. [REDACTED] Executive Director of Academic Services rather than the School Board. Regardless, you are welcome to copy the School Board or others you deem appropriate on your communications. However, District staff will not copy additional people because these emails contain private data about your child.

Emily and [REDACTED]



Emily Herman

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]

To: lori meehar [REDACTED] indy OBrien [REDACTED]

[Quoted text hidden]

<mthomas@plsas.org>

Thank you Emily,

As outlined in the email to the school on November 1st, [REDACTED] has consistently stated that she was struck on the head five times with a chair during two separate incidents. Initially, she was struck three times, and approximately five minutes later, the aggressor managed to pick up the chair again and hit her twice more. This critical detail would have been evident had [REDACTED] conducted a proper interview with [REDACTED] as part of the school's "investigation."

When the policies, procedures, and training you ask us to trust fail to accurately capture such a fundamental detail, lack mechanisms for addressing deviations from written policies, and misrepresent the victim's experience so significantly, it is impossible for us to trust that they are being applied in a fair or reliable manner. Given the evident bias demonstrated by the school's actions to date, we will be escalating this matter by filing a formal objection with the Minnesota and U.S. Departments of Education. We will be in touch with further updates soon.

[Quoted text hidden]

School Boar [REDACTED]

Fri, Dec 6, 2024 at 7:32 AM

[Quoted text hidden]

To: Michael Thomas <mthomas@plsas.org>

Hello Michael,

My name is [REDACTED] and I am contacting you in regards to the concerns noted in the email below. I would like to make sure my complaint represents the situation as accurately as possible; can you confirm that you made the decision to deviate from the minimum consequences outlined in PLSAS's posted policy on attacks involving a weapon (https://www.plsas.org/uploaded/School_Board/Policies/500/501_-_Weapons.docx.pdf)? Alternatively, if the decision was made by one of your designees, please tell me who that designee was and when they notified you.

We appreciate your timely response.

[Quoted text hidden]

School Boar [REDACTED]

Mon, Dec 9, 2024 at 3:49 PM

[Quoted text hidden]

EXHIBIT 1C

Follow-Up on Formal Complaint and Request for Action and Formal Request for Investigation into Policy 506.1 Violations

11 messages

Dear Michael, Emily, [REDACTED] and [REDACTED]

We are writing to follow up on our **Formal Complaint and Request for Action** submitted on 1/4/2025 regarding the violent assault that occurred on October 29, 2024, and the subsequent lack of adequate response from the district. To date, we have not received acknowledgment of receipt or any substantive response addressing the issues outlined. Given the severity of the concerns raised, including violations of MN Statutes, Title IX, and FERPA, this continued silence is deeply troubling.

The school has now failed to meet the timeline mandated by MN Stat. § 13.04 to address inaccurate records within 30 days of written notification. The absence of action to correct these inaccuracies is yet another example of the district's non-compliance and disregard for statutory obligations.

Upon further review, we believe the district's failure to respond appropriately also constitutes multiple violations of Policy 506.1 – Bullying Prohibition:

1. Failure to Investigate and Respond Timely:

- Policy 506.1 mandates that complaints involving violence and harassment be investigated within three school days of receipt and that protective actions for the victim be implemented immediately. It has now been 67 days since we submitted our initial complaint, yet no investigation results or remedial actions have been provided.

2. Failure to Provide a Safe Environment:

- The district has failed to uphold its duty to ensure a safe and supportive environment for our daughter, despite evidence of severe and persistent harassment and physical harm during class.

3. Negligence in Mandatory Reporting Requirements:

- The failure to report and investigate the assault under MN Stat. § 260E demonstrates a lack of compliance with mandatory reporting obligations for maltreatment of minors.

4. Retaliation and Obstruction:

- The email blocking incident, subsequent lack of access to records, and failure to comply with obligations regarding inaccurate records suggest a pattern of retaliation and obstruction, which violates both Policy 506.1 and Title IX anti-retaliation provisions.

[REDACTED] is the school principal or building record taker, we are formally requesting that Michael and the Office of the Superintendent initiate an investigation into violations of Policy 506.1 – Bullying Prohibition as outlined in this and prior communications.

We are also gravely concerned that our daughter's protected status—as a lesbian who uses she/they pronouns—has contributed to the lack of urgency, transparency, and responsiveness in addressing this

matter. Under Title IX (20 U.S.C. § 1681) and the Minnesota Human Rights Act, discrimination based on gender identity and sexual orientation is strictly prohibited.

In addition to the already pending matter involving the sexual abuse our daughter suffered in class, we believe this warrants, and will be asking the US Department of Education to proceed with, an investigation into whether:

1. The victim's protected status played a role in the failure to recognize the incident as gender-based harassment or discrimination.
2. The district's refusal to provide timely updates and blocked communication channels represents retaliation under Title IX (34 C.F.R. § 106.71).
3. The lack of appropriate remedial actions constitutes a hostile educational environment, violating federal and state anti-discrimination laws.

The district's failure to respond has already caused our daughter to miss three documented days of school, further disrupting her education and well-being. Additionally, to ensure she has access to a safe learning environment, we have been forced to enroll her in a private school at our own expense. This burden was entirely avoidable had the district fulfilled its obligations under Policy 506.1, FERPA, Title IX, and MN Statutes.

To prevent further delays and ensure compliance with legal obligations, we are requesting the following actions within 48 hours:

1. **Formal Acknowledgment:** Written acknowledgment of receipt of our Formal Complaint and Request for Action and this follow-up.
2. **Investigation Timeline:** Confirmation of when the investigation required under Policy 506.1 and MN Stat. § 260E will be completed and when we can expect results.
3. **Disciplinary Records:** Provision of the requested records related to disciplinary actions against the perpetrator and any actions taken regarding the teacher's failure to intervene, as required under FERPA and MN Stat. 13.32.
4. **Corrective Measures Plan:** Documentation of actions taken to restore safety and prevent recurrence, including steps to address potential discrimination based on our daughter's protected status.
5. **Compliance with Title IX Requirements:** Written explanation of how the district intends to address its failure to provide accessible reporting mechanisms, along with a plan to rectify email filtering policies and ensure future compliance. We expect this will include an apology for the suffering the district's non-compliance has put our family through to date.

We are again formally documenting our concern that the district's refusal to provide requested records continues to impede our ability to gather evidence required to support our claims. The lack of transparency in providing these records violates our rights under FERPA, MN Stat. 13.32, and Title IX and further demonstrates retaliation and obstruction that we intend to address as part of our escalation.

If these requests are not addressed within the specified timeframe, we will have no choice but to escalate this matter to the U.S. Department of Education's Office for Civil Rights (OCR) and MN Department of Education without full information at our disposal, and note this is the result of the District's failure to respond to multiple requests and formal complaints of objection in those claims.

Additionally, we will move forward with the pursuit of all available legal remedies, including bringing these failures to the attention of the press and media to ensure accountability and compliance with state and

federal laws.

Sincerely,

School Board

Tue, Jan 7, 2025 at 8:28 PM

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

PLSAS Board Chair

Michael Thomas <mthomas@plsas.org>

Wed, Jan 8, 2025 at 3:33 PM

and

Thank you for your most recent email. Attached you will find responses to the points you raised.

My best,

Michael

[Quoted text hidden]

 January 8 2025 Dr Thomas Response.pdf
206K

To:

[Quoted text hidden]

 January 8 2025 Dr Thomas Response.pdf
206K

To: Michael Thomas <mthomas@plsas.org>, Emily Herman

Mr Thomas,

Thank you for your response. While we appreciate the time and effort taken to address our concerns, many responses provided fail to align with the district's obligations under state law, federal law, and PLSAS policy. We remain deeply concerned about the district's approach, which continues to deny our daughter her lawful rights and protections.

We acknowledge your preference to engage with the Department of Education as soon as possible, and share this goal. However, doing so before we have exhausted every effort to resolve our concerns using the due process accorded to us under PLSAS policy and MN law seems to aim at creating District defensibility rather than addressing the core issues directly. As much as we wish otherwise, this is the proper forum for the issues we are raising.

It is clear that the quickest and most effective resolution would have been adherence to district policies and legal obligations in response to our concerns. Failing that, a timely and substantive response to our lawful requests for policy clarification or other rights accorded to us by PLSAS policy and MN law will suffice.

1. Personal Property

We appreciate the school gathering Caty's property and making an accommodation that limits our families' need to be exposed to Hidden Oaks. We will make arrangements for time off and come by as soon as possible. We understand from earlier communications how much the District values their iPads, and will be sure to bring the District's device with us. We acknowledge this response as being made "in good faith".

2. Results of Disciplinary Actions

We note the district's refusal to provide the results of disciplinary actions citing legal limitations is inconsistent with Policy 526 on **Hazing**, which explicitly allows for disclosure in certain cases. Caty's initial delay in reporting the attack and unwillingness to go into details was due to a lack of trust in the district's willingness to hold their attackers accountable or protect them from retribution. This fear is validated by the district's failure to protect her from the attack that occurred under direct staff supervision, take steps outlined in their policy - including the "immediate removal from class" requirement in Minn. Stat. § 121A.61, or communicate alternate disciplinary measures sufficient enough to prevent recurrence that were taken to ensure their safety.

As they are realizing the safety their current private education has provided, they are more willing to go into details about the trauma they experienced. They have identified [REDACTED] as one of Scarlett's friends who was involved in the bullying and homophobic slurs that they experienced in the weeks leading up to the attack. This is not a surprise to us - as noted in the email sent November 1st, it seemed very unlikely that such a violent and bold assault would be the first act of bullying the child engaged in. This makes it clear to us that the incident does indeed fall under Title IX protections, making the district's lack of transparency and failure to provide for their safety even more troubling. We formally request clarification on the statutory basis for disclosing outcomes under Policy 526 and how absent such relief the District intends to demonstrate its obligation to provide for Caty's safety in this case. We acknowledge this response as being made "in good faith", and thank the District for their compliance with state law.

3. Written Determination for Discipline Complaint

We agree that the District promptly appointed an investigator into the second incident of sexual assault. It is disingenuous to imply that Emily was also involved in any investigation of the

physical assault. We would highlight her failure to ask a single question into that matter, and her only communication on the matter stating in writing that the District considers the investigation complete.

The lack of adequate response to our written Discipline Complaint of the District's failure to take appropriate action for the physical assault, failure to involve a neutral investigator with trauma-informed training, and refusal to allow email submissions for interviews violated Title IX and further demonstrated the inadequacy of the district's response. These are some of the key reasons we decided it would be inappropriate to allow the District opportunity to inflict further trauma by leading the investigation into the sexual assault.

With over 60 days passed since the request, we expect a timeline for responding to both complaints. We reject the assertion that this response was made in good faith and request this matter be treated as a formal complaint.

4. Applicability of Minn State 121A.49

We apologize, you are of course correct. The relevant statute outlining the District's obligation is 121A.61, in which Subdivision 3 paragraph (s) identifies that school policy must include a provision that states a student **must** be removed from class immediately if the student engages in assault or violent behavior. As noted in our email on Nov 1st this does not appear to have happened. Further, Subdivision 4 outlines the minimum requirements for the Discipline complaint procedure must adhere to in order to provide [REDACTED] with equal protection under the law. We continue to await details on when the school intends to fulfill their obligation to respond to our complaint. We acknowledge this response as having been made "in good faith".

5. Written request dated December 6th to correct inaccurate records related to this incident

MN Statute 13.04 Subdivision 4 outlines the procedure when data is not accurate or complete, which requires us to notify the responsible authority in writing about the nature of our disagreement. You acknowledge we did this. Upon receiving that notification, the District was obligated to take action within 30 days, which it did not do. We find the District's assertion that they "did not realize" their obligation to respond to our written notification of inaccuracy insufficient. As the District has failed to meet their statutory obligation, we reject the assertion that this response was made "in good faith". Please treat this as a formal complaint stating such, and provide us with a copy of the record once it has been amended.

6. Request for records documenting actions taken to ensure Caty's safety

The District was aware [REDACTED] had been physically assaulted Oct 29th. It was verbally notified of the sexual abuse the same day, and was aware an email with more details was forthcoming. That email was sent and received by the District's network on Nov 1st, and stated "We would like to understand what concrete steps the school will be taking to ensure Caty's safety in between now and the start of her PHP program". The District was then sent a follow-up email on Nov 4th. It was also sent emails at the [REDACTED] inbox noting that we were keeping [REDACTED] home because of "concerns for her health, wellbeing, and safety while at school" on November 5th and November 6th. None of these emails generated any delivery failure notifications, or elicited any response from the school. [REDACTED] was coming up on the end of their PHP stay, we again reached out to the District requesting details on steps to ensure her safety, which was again ignored until your response on 1/8. This lack of timely response and failure to demonstrate concrete actions undermine the district's credibility and commitment to student safety. We appreciate the District providing us with the information needed for us to

proceed with our claim in this case, and agree it's best for further discussion on this matter be between the District and Departments of Education. We note this response was not received within the 10 day timeline required by statute. Thus it represents a failure to provide our daughter with equal protection under the law, and cannot be interpreted as "in good faith". Please treat this as a formal complaint stating such.

7. Data Request regarding [REDACTED]

Thank you for your response. We reiterate it is inconceivable that proper application of PLSAS policy for a teacher who failed to notice an attack that the County classifies as 3rd degree felony assault result in no action. We reiterate that failing to notice the first attack is bad enough, but failure to notice or prevent the second attack constitutes negligence, and should have been investigated as such. We acknowledge that at the time the District was operating on the basis of an inaccurate record, and the law enforcement investigation was still pending. We look forward to receiving a timely written outcome of further investigation into this matter. As this response was not received within the 10 day timeline outlined by MN statute, it failed to provide our daughter with equal protection under the law and thus cannot be interpreted as "in good faith". Please treat this as a formal complaint stating such.

8. Acknowledgement of requests for investigation

Thank you for your response re: 8 and 9. PLSAS policy calls out yesterday (1/8/2025, or 3 days after receipt of the complaint) as the deadline for an investigator to be appointed in these cases. This obligation was clearly missed. We expect to be informed when the District meets their obligation, and provided with a timeline regarding when we can expect the District's written response. Further, we note that by failing to respond promptly per statute, our daughter has not been provided equal protection under the law in this matter, and thus the District's response cannot be categorized as "in good faith". Please treat this as a formal complaint stating such.

9. Complaint re: failure to comply with Title IX

Thank you for the apology regarding the delay in receiving the original email. This is not an acknowledgement that our rights under Title IX were violated, and fails to address Joe's deliberately indifferent response. The District's continued insistence that we could not submit answers to Caty's interview without an unreasonable delay indicates that any review that has been done is insufficient to bring the District into compliance with Title IX, and absent any change, we see no reason continuing these reviews would bring the District into compliance moving forward. The [US Department of Education's Final Rule](#) explicitly enumerates email as one of the means of reporting the school is obligated to provide in item 4. We formally request that the District clarify their policy and inform us what words we could have used to accurately describe the assault without triggering the District's filtering policies.

Item 5 forbids responses to complainants that are deliberately indifferent, and require supportive measures to be offered. "I cannot help you" clearly does not meet this bar. As noted in our previous email, we expect an apology for the suffering caused - including deliberate indifference, acknowledgement of the District's failure to comply with their obligations in our case, and for the school to provide information regarding the specific steps they will take to come into compliance. Your choice to highlight the insufficient apology and not speak to or acknowledge the serious concerns we raise cannot be described as a response "in good faith". Please treat this as a formal complaint stating such.

10. Delivery Failure Notification

Thank you for your response. Please note that this is different from the response I received from Emily on 12/20, which stated the block notification was the result of an email the school sent to me. While we appreciate the acknowledgement that school email policies continue to provide barriers to the District's ability to promptly reply to requests made to the school and no more action is requested, we want to highlight that indicating this is the same response we received on 12/20 is inaccurate, and thus another example of the school's not answering in "good faith". Please treat this as a formal complaint stating such.

11. Request to initiate an investigation into violations of 506.1 and MN chapter 250E

Thank you for your response. While we agree that Policy 506.1 requires intimidating, threatening, abusive, or harmful conduct between students, we do not agree with the District's interpretation that the policy only applies to students. We are stating that Raina's assault on [REDACTED] and the attacks and homophobic slurs that preceded it, meet the definition of Bullying, and applicable policy should apply. Raina's behavior clearly caused harm, inflicted emotional distress, and was directed towards [REDACTED] as a result of her gender and sexual identity. We note we have written assessments in which child health professionals at Caty's PHP program explicitly state "She experienced **bullying** at school *including negative comments about gender expression and sexuality*", as well as "This is consistent with the challenges which prompted her referral for PHP services and with the **bullying** which she endured." ***Continued denial of our request after this clarification will be met with an appeal on the grounds that peer child professionals have documented her experience as such.***

Policy 506.1 article 1 states "However, to the extent such conduct affects the educational environment of the school district and the rights and welfare of its students and **is within the control of the school district in its normal operations**, the district intends to prevent bullying and to **take action to investigate, respond to, and to remediate, and discipline for those acts of bullying which have not been successfully prevented**. As the most severe act of bullying occurred during class under a teacher's direct supervision, it was clearly under the control of the District in its normal operations. The District's failure to remediate, discipline, or take any action that generates a record towards the teacher in this case deviates from this posted policy.

Article III paragraph D states "No **teacher, administrator**, volunteer, contractor, or **other employee of the school district** shall permit, condone, or tolerate bullying."; We are unable to see how a failure to discipline or take other action towards a teacher who failed to prevent an act of bullying - one that resulted in a concussion and requires 9 months of medical intervention - can be seen as anything other than tolerance of and permitting bullying. The administration and [REDACTED] are both in violation of this policy.

We want to stress *every child care professional that has been provided with the same information we provided the District in our email Nov 1st* has immediately recognized this as Bullying. Article VII paragraph D states "A teacher, **school administrator**, volunteer, contractor, or **other school employee** shall be particularly alert to possible situations, circumstances, or events that might include bullying". It is reasonable for us to expect [REDACTED] and Emily, in their particular alertness, to have noticed the same signs as signals as their peer professionals, and have identified this accordingly. It is clearly possible that bullying may be a factor in an incident that is classified by the County as 3rd degree felony assault. [REDACTED] *never interviewing [REDACTED]* as a part of his investigation cannot be categorized as being particularly alert. It is reasonable for us to expect a properly trained and senior school official who is being particularly alert for bullying

would have noticed the same signs during his interview as other peer professionals and acted accordingly. These actions violate section VII paragraph D and section III paragraph D.

Article III paragraph I states "The school district will act to investigate all complaints of bullying reported to the school district *and will discipline or take appropriate action against any student, teacher, administrator, volunteer, contractor, or other employee of the school district* who is found to have violated this policy.", making it plainly evident that this policy does not apply only to students.

As this complaint involves [REDACTED] the building report taker, section VII paragraph C identifies the office of the Superintendent as the appropriate forum for us to bring this complaint. We expect the District to fulfill their obligation and investigate accordingly. We also note that it is reasonable for us to expect that a senior District administrator would be familiar with District policy. The District's choice to misrepresent Policy 506.1 by stating that it only applies to students is clearly disingenuous and cannot be interpreted as a response "in good faith". Please treat this as a formal complaint stating such.

We thank the District for the responses that were made in good faith or fully resolved a request. We look forward to the District responding to the unresolved items in a manner and within a timeframe that meets their lawful obligations and provides our daughter equal protection under said law.

[Quoted text hidden]

School Board [REDACTED]

Thu, Jan 9, 2025 at 11:43 PM

[Quoted text hidden]

To: [REDACTED] Michael Thomas <mthomas@plsas.org>, Emily Herman [REDACTED]

Bcc: Andy OBrien [REDACTED] Pri meehar [REDACTED]

Dear Mr. Thomas,

I hope this message finds you well. I am writing to follow up on my email sent on Jan 9th, 2025, which addressed multiple significant concerns related to our daughter's safety, district compliance with applicable policies, and legal obligations. As of today, we have not received any response or acknowledgment of our correspondence. This lack of response, beyond being deeply disappointing, appears to represent a failure to comply with both district policy and Minnesota law.

To assist in expediting a resolution, I have enumerated below the outstanding items requiring attention and where the lack of response constitutes a potential violation:

1. Written Determination for Discipline Complaint

- **Unresolved Issue:** Over 60 days have passed since our original complaint regarding the District's failure to appropriately address the physical assault on our daughter. Minnesota law (Minn. Stat. § 121A.61) requires a timely and substantive response, which we have yet to receive.
- **Violation:** Failure to provide a written determination or timeline within the statutory period denies equal protection under the law and does not constitute a response made in good faith.

2. Correction of Inaccurate Records

- **Unresolved Issue:** Our written request dated December 6th, under Minn. Stat. § 13.04 Subdivision 4, to correct inaccuracies in our daughter's records has gone unanswered. This statute required action within 30 days.

- **Violation:** The District's failure to respond to this statutory obligation is unacceptable and constitutes a violation of the Minnesota Government Data Practices Act.

3. Results of Disciplinary Actions

- **Unresolved Issue:** Policy 526 on Hazing explicitly allows for the disclosure of disciplinary actions in certain circumstances. We requested clarity on the specific school policy and statutory provisions used to justify disclosure in these cases, as well as an explanation as to why the same statute or policy is not applicable in this instance. The district's refusal to provide this clarity undermines our daughter's confidence in the school's ability to protect her safety.
- **Violation:** Failure to provide transparency or the statutory basis for disclosure within a reasonable timeframe contravenes the District's stated policy and obligations under Minnesota law.

4. Request for Records Documenting Safety Measures

- **Unresolved Issue:** The District has failed to provide documentation of any actions taken to ensure our daughter's safety following multiple assaults.
- **Follow-Up Request:** We request that the District either provide documentation of the steps it did take to ensure her safety or acknowledge that it failed to take any measures despite receiving numerous requests to do so.
- **Violation:** Minnesota law requires the District to act promptly and substantively when addressing issues that directly impact student safety. The lack of timely response and failure to implement any safety measures falls short of this requirement.

5. Title IX Compliance and Investigative Process

- **Unresolved Issue:** Our complaints of bullying, harassment, and assault under Title IX remain unaddressed, with the District missing key deadlines, including the three-business-day timeline for appointing an investigator per district policy.
- **Violation:** The delay in meeting procedural obligations under Title IX, coupled with responses that fail to meet the "good faith" standard, further exacerbates the harm to our daughter and violates federal law.
- **Additional Requests:** We seek clarification on what words we could have used to accurately describe the assault without triggering the District's email filtering policies. Additionally, we request an acknowledgment and apology for the deliberate indifference shown when our Title IX complaint was blocked and subsequent failure to rectify the situation promptly. Furthermore, we request specific steps the District will take to support the acceptance of email reporting of complaints in compliance with Title IX requirements.

6. Policy 506.1 Violations and Failure to Investigate

- **Unresolved Issue:** The District has yet to act on our formal request to investigate violations of Policy 506.1 and Minnesota Chapter 250E related to bullying and student safety. Policy 506.1 explicitly states that all complaints of bullying violations will be investigated. The policy further mandates specific timelines, including the appointment of an investigator within three business days of receiving a complaint and the provision of a written determination within ten business days. Despite these clear requirements, no action has been taken.
- **Follow-Up Request:** We request a clear outline of the timelines the school is obligated to adhere to under Policy 506.1, including deadlines for initiating investigations and providing outcomes. Given that the District has already failed to meet the three-business-day deadline for appointing an investigator, we also request an explanation of the adjusted timeline the school intends to follow and confirmation that these revised deadlines will be met moving forward.
- **Violation:** Failure to investigate and provide appropriate disciplinary actions, especially when incidents occurred under staff supervision, represents a deviation from district policy and Minnesota law, and it undermines the protections Policy 506.1 is designed to provide.

Request for Immediate Action

Given the gravity of these issues and the significant delays already experienced, we request the following:

1. Acknowledgment of this communication within one business day.

2. A detailed timeline for addressing each of the unresolved issues outlined above.
3. Clarification of any statutory or policy-based limitations that the District believes apply to its obligations.
4. Assurance that all responses moving forward will be timely and meet the standards required under district policy and state and federal law.

If we do not receive an adequate response within five business days, we will have no choice but to escalate our concerns to state and federal authorities, including the Minnesota Department of Education and the U.S. Department of Education's Office for Civil Rights. Additionally, we will move forward with bringing our story to the attention of the media to ensure public awareness and accountability.

We remain hopeful that the District will act promptly to address these serious concerns and fulfill its obligations to ensure the safety and well-being of all students.

Sincerely,

[Quoted text hidden]

School Board

Wed, Jan 15, 2025 at 6:01 AM

[Quoted text hidden]

Michael Thomas <mthomas@plsas.org>

Wed, Jan 15, 2025 at 9:27 AM

Thank you for your follow-up and I will thoroughly review and respond no later than the end of next week.

My best,

Michael

[Quoted text hidden]

To: Michael Thomas <mthomas@plsas.org>

Bcc: Andy OBrien; Bri Meehan

Mr Thomas,

Thank you for acknowledging my follow-up. However, the timeline you have proposed—to respond by the end of next week—fails to address the urgency of the issues outlined, many of which involve the District's obligations under Minnesota law, federal law, and district policies. Several deadlines for action have already passed, and further delays continue to deny my daughter her lawful rights and protections.

To reiterate:

- **Policy 506.1** requires an investigator be appointed within three business days of a complaint. This deadline has already passed without action.
- **Minn. Stat. § 13.04 Subdivision 4** requires action on data correction requests within 30 days, another deadline the District has missed.
- **Minn. Stat. § 121A.61 and Title IX** set clear requirements for prompt investigation and resolution of complaints, which remain unfulfilled.

Additionally, in the District's January 8th, 2025 response, it was acknowledged that the Discipline Complaint process would begin that day. This acknowledgment obligates the District to adhere to specific timelines, including:

1. The appointment of an investigator within three business days, which should have occurred by January 11th, 2025.
2. The provision of a written determination within ten business days, which would be due by January 22nd, 2025.

While a full response to our broader concerns by next Thursday may be acceptable, we expect to receive committed timelines for addressing the specific unresolved items outlined in this letter by the close of business tomorrow, January 16, 2025.

Given the statutory and policy requirements already in default, I request an immediate timeline for resolution of the items listed in my previous correspondence, with written acknowledgment that the District will act in compliance with its obligations. Delaying substantive engagement until the end of next week will force us to escalate to state and federal authorities, as well as engage the media to ensure accountability.

Please provide confirmation of your intended actions no later than the close of business tomorrow, January 16, 2025.

Sincerely,

Draft To: Michael Thomas <mthomas@plsas.org>

[Quoted text hidden]

EXHIBIT 1D



PRIOR LAKE-SAVAGE AREA SCHOOLS

January 8, 2025

Dear Mr. [REDACTED]:

I am writing in response to your January 4, 2025 and January 7, 2025 email. Today is the third business day since January 4, 2025. The District has provided you information in a timely manner, while also balancing the numerous other responsibilities of staff.

1. Request for Items in Caty's Locker

Items in Caty's locker have been collected and are available for you to pick up from the main office at Twin Oaks [REDACTED] SE) to avoid the need to enter Hidden Oaks.

[REDACTED] still has her school-issued iPad, which will need to be turned in as she is no longer a student. Please return it when you come to pick up her belongings.

2. Request for results of disciplinary actions for "a crime of violence" pursuant to Minn. Stat. § 13.32 and 20 U.S.C. § 1232g(b)(6)(A) and (B).

Neither Minnesota law nor FERPA permit disclosure of discipline records of a secondary student to the victim of a crime of violence. The provision of FERPA you cite states: "Nothing in this section shall be construed to prohibit an **institution of postsecondary education** from disclosing..." The District is not an institution of postsecondary education. Hidden Oaks is also not an institution of postsecondary education.

Minnesota Statutes Section 13.32, subd. 3(o) permits disclosure "of the final results of a disciplinary proceeding on a crime of violence... to the extent authorized under United States Code, title 20, section 1232g(b)(6)(A) and (B)." As noted above, this provision applies only to institutions of postsecondary education, which the District is not.

Education records of secondary students, including discipline records, are private educational data under Minnesota and federal law. Your request for discipline records related to a student other than your own child is denied.

3. Written Determination for "Discipline Complaint submitted in writing on November 1st"

In response to the concerns raised in your November 1, 2024 email, which were received by the District on November 15, Superintendent Dr. Michael Thomas requested that Executive Director of Administrative Services Emily Herman conduct an investigation. Ms. Herman contacted you several times requesting that [REDACTED] provide information related to the complaint, including providing written responses to questions rather than through a live interview. You refused to provide such information.

Due to the District's inability to gather information from [REDACTED] regarding the allegations, the investigation into your concerns remains ongoing. By way of example, the District does not know which peers allegedly "hit and kicked [REDACTED] repeatedly" or intentionally hit her on the head



PRIOR LAKE-SAVAGE AREA SCHOOLS

since the concussion. While you identified one peer accused of sexually assaulting [REDACTED] the District does not have information regarding peers who allegedly engaged in physical and verbal abuse. In the absence of such information, the District has been attempting to follow up on what it has learned from witnesses.

The investigation is ongoing.

4. Clarification on "when the district intends to fulfill its obligations under MN statute 121A.49."

Minnesota Statutes Section 121.49 refers to the process for a student who is subject to a statutory exclusion or expulsion to appeal to the Commissioner of the Minnesota Department of Education. Such statute is entirely inapplicable to this situation.

5. "[W]ritten request dated December 6th to correct inaccurate records related to this incident"

The District did not understand your December 6 email to be a request to correct data. The District shared information from its investigation regarding the number of times [REDACTED] was hit. You shared Caty's input that she was hit three times initially, and then two additional times. That input will be considered in the District's investigation. The records of the District's investigation will accurately reflect the different reports.

6. Further, it has been 15 days since our written request for any records documenting actions taken to ensure Caty's safety following this incident, as required by PLSAS Policy 406, MN statute 13.32, and 20 U.S.C § 1232g.

The District takes the safety of all students seriously. [REDACTED] attended school for a partial day between October 29 and the present. During that time, staff were not aware of ongoing issues between [REDACTED] and peers. Staff were prepared to implement the accommodations requested by Caty's medical providers following her concussion.

[REDACTED] -enrolls in PLSAS, the District will work with you and [REDACTED] to determine what measures are necessary to ensure her safety at school.

7. Request for the existence and status of any charges and the final disposition of disciplinary action against the teacher involved.

The data that are public related to the teacher are the existence and status of complaints against the teacher and the final disposition of any disciplinary action. With respect to [REDACTED] one complaint has been raised against her and the status of that complaint is that the District has completed an investigation. There is no data responsive to a request for the final disposition of any disciplinary action as defined in Minnesota Statutes section 13.43, subd. 2(b).

8. "To remove any ambiguity, please consider this a formal written Discipline Complaint under Policy 103 challenging the apparent lack of disciplinary action or safety measures."



PRIOR LAKE-SAVAGE AREA SCHOOLS

The District will review your complaint and consider appropriate action under its policies.

- 9. We are submitting this as a formal request, in accordance with Policy 103, for an investigation into the failure of mandated reporters to comply with their obligations under the Reporting of Maltreatment of Minors Act.**

The District will review your request and consider appropriate action under its policies.

- 10. Complaint regarding Title IX reporting mechanisms and request for a written apology and clear explanation of the steps being taken to comply with Title IX requirements.**

As Principal [REDACTED] shared in his November 20, 2024 email, we apologize that the District's technology practices caused a delay in receiving your original email chain.

The District has and will continue to review its technology practices to ensure that its efforts to prevent inappropriate emails do not create a barrier to reporting Title IX complaints on behalf of District students or employees.

11. Delivery Failure Notification from 12/20

As explained to you previously, the notice you received states that delivery to your email address failed. That appears to refer to an email sent on December 13, 2024. As explained in an email from Executive Director of Administrative Services Emily Herman on December 20, 2024, District employees did receive your December 13 email and Ms. Herman responded.

12. Request for Investigation Timeline Policy 506.1 and MN Stat. Chapter 260E

You have alleged the District's response to your concerns violates District Policy 506.1. That policy applies to conduct between students or group of students. The District denies conducting an investigation based on your claims that the District's conduct constitutes bullying. As noted above, this policy applies only to students, which the District is not.

The District is not responsible to conduct investigations per the MN Stat. Chapter 260E.

Closing

The District has repeatedly answered your requests for information in good faith. Despite these efforts, you continue to seek a debate about District policies and applicable law. The District is not interested in such a debate and, as you have previously been informed, the District will respond to a formal complaint in the appropriate forum.

Sincerely,

Michael Thomas

Superintendent

EXHIBIT 1E

PLSAS- Data Requests Received

7 messages

Mon, Apr 13, 2026 at 10:19 AM

Cc: [REDACTED]

Good Morning Mr. [REDACTED]

I wanted to confirm that your three data requests have been received and will be reviewed. I will follow up once the request is complete or if there are any questions.

1.) Data involving Incident ID 73 [REDACTED] subjects.

2.) Data involving "2024 Title IX Sexual Harassment Complaint - Summary Report" dated November 1, 2024 and all records where [REDACTED] re subjects.

and

3.) Data involving "2024 HOMS Investigation Process Complaint - Summary Report" dated January 4, 2025 and all records where [REDACTED] re subjects.

Thank you,



Communications Administrative Assistant
Prior Lake Savage Area Schools
[REDACTED] SE Prior Lake, MN 55372

To: [REDACTED] Michael Thomas <mthomas@plsas.org>

Mrs. [REDACTED]

I am following up regarding my data-subject requests submitted on 4/13, for which you confirmed receipt.

Today is the sixth business day since receipt.

As previously noted, these are valid requests under Minn. Stat. §§ 13.04 and 13.32 and District Policy 722. The statute requires that a data subject be provided access immediately, if possible, or within 10 days if not.

Please confirm:

1. The date by which the District will complete production; and
2. Whether the District contends that any responsive data do not exist or will be withheld.

If any responsive data are being withheld in whole or in part, please identify the specific records or portions withheld and cite the legal basis for each denial, while still producing all segregable data to which I am entitled as a data subject.

To date, I have not received any substantive response or production.

I expect full compliance within the statutory timeframe. If the District does not intend to comply within that timeframe, please state that position clearly.

Please produce all responsive records electronically to:

[Quoted text hidden]

Mon, Apr 20, 2026 at 2:25 PM

Cc: Michael Thomas <mthomas@plsas.org>

Mr.

Thank you for your follow-up. We confirmed receipt of your data requests on 04/13.

We are actively working on your requests and coordinating internally to ensure a complete and accurate response. You can expect an update within this week.

We appreciate your patience as we process your request in accordance with applicable requirements.



Communications Administrative Assistant
Prior Lake Savage Area Schools
SE Prior Lake, MN 55372

This Message Is From an External Sender

This message came from outside your organization.

[Quoted text hidden]

To:

Cc: Michael Thomas <mthomas@plsas.org>

Mrs.

Thank you for the update.

To be clear, I am expecting the District's substantive response and any responsive production within the timeframe required by Minn. Stat. § 13.04 and District Policy 722, measured from the District's acknowledged receipt on 04/13.

If any responsive data do not exist, please state that expressly in writing. If any responsive data are withheld in whole or in part, please identify the records or portions withheld and cite the specific legal basis for each denial, while still producing all segregable data to which I am entitled as a data subject.

[Quoted text hidden]

Wed, Apr 22, 2026 at 12:39 PM

Cc: Michael Thomas <mthomas@plsas.org>

Good afternoon,

Thank you for your patience while we completed the three data requests you submitted with district receipt of 04/13/26. I've compiled all responsive materials into a "4/13/26 Data Request" folder in Google Drive.

Much of the information aligns with your previous requests, so I've also included the "2024 Data Request" folder for convenience, so everything is accessible in one place.

Thank you,



Communications Administrative Assistant
Prior Lake Savage Area Schools
SE Prior Lake, MN 55372

[Quoted text hidden]

To:
Cc: Michael Thomas <mthomas@plsas.org>

Good afternoon,

Please proceed with providing access.

For clarity, I understand this to be the District's complete response to my data-subject requests received on 04/13/26. If any responsive data have been withheld in whole or in part, please identify the specific records or portions withheld and cite the legal basis for each denial, while providing all segregable data to which I am entitled as a data subject.

If the District contends that no additional responsive data exist beyond what is included in the folder(s), please confirm that in writing.

Thank you,

[Quoted text hidden]

Wed, Apr 22, 2026 at 3:07 PM

Cc: Michael Thomas <mthomas@plsas.org>

For access to the digital copies of your data requests, click on the link below.

[\[04/13/26 Data Request\]](#)

If you have any issues accessing this link, please let me know.

This concludes all of the responsive data the District holds for your 04/13/26 data requests.

Thank you,



Administrative Assistant
Prior Lake Savage Area Schools
Prior Lake, MN 55372

This Message Is From an Untrusted Sender

You have not previously corresponded with this sender.

[Quoted text hidden]

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-001	2	Redacted to protect personal privacy.
PLSAS-001	19	Redacted to protect personal privacy.
PLSAS-001	20	Redacted to protect personal privacy.
PLSAS-004	4	Redacted to protect personal privacy.
PLSAS-004	6	Redacted to protect personal privacy.
PLSAS-004	13	Redacted to protect personal privacy.
PLSAS-004	24	Redacted to protect personal privacy.
PLSAS-005	2	Redacted to protect personal privacy.
PLSAS-005	3	Redacted to protect personal privacy.
PLSAS-005	9	Redacted to protect personal privacy.
PLSAS-005	21	Redacted to protect personal privacy.
PLSAS-006	10	Redacted to protect personal privacy.
PLSAS-006	18	Redacted to protect personal privacy.
PLSAS-006	21	Redacted to protect personal privacy.
PLSAS-006	21	Redacted to protect district employee privacy.
PLSAS-008	3	Redacted to protect personal privacy.
PLSAS-008	7	Redacted to protect personal privacy.
PLSAS-010	7	Redacted to protect personal privacy.
PLSAS-010	5	Redacted to protect personal privacy.
PLSAS-010	6	Redacted to protect personal privacy.
PLSAS-010	5	Redacted to protect district employee privacy.
PLSAS-010	2	Redacted to protect personal privacy.
PLSAS-011	34	Redacted to protect personal privacy.
PLSAS-011	2	Redacted to protect personal privacy.
PLSAS-011	27	Redacted to protect personal privacy.
PLSAS-011	4	Redacted to protect personal privacy.
PLSAS-012	8	Redacted to protect personal privacy.
PLSAS-012	36	Redacted to protect personal privacy.
PLSAS-012	35	Redacted to protect personal privacy.
PLSAS-012	7	Redacted to protect personal privacy.
PLSAS-012	37	Redacted to protect personal privacy.
PLSAS-012	34	Redacted to protect personal privacy.
PLSAS-012	7	Redacted to protect district employee privacy.
PLSAS-012	37	Redacted to protect district employee privacy.
PLSAS-012	6	Redacted to protect personal privacy.
PLSAS-012	12	Redacted to protect personal privacy.
PLSAS-012	9	Redacted to protect personal privacy.
PLSAS-012	22	Redacted to protect personal privacy.
PLSAS-013	11	Redacted to protect personal privacy.
PLSAS-013	30	Redacted to protect personal privacy.
PLSAS-013	24	Redacted to protect personal privacy.
PLSAS-013	35	Redacted to protect personal privacy.
PLSAS-013	23	Redacted to protect personal privacy.
PLSAS-013	12	Redacted to protect personal privacy.
PLSAS-013	22	Redacted to protect personal privacy.
PLSAS-013	31	Redacted to protect personal privacy.
PLSAS-013	34	Redacted to protect personal privacy.
PLSAS-013	24	Redacted to protect district employee privacy.
PLSAS-013	35	Redacted to protect district employee privacy.
PLSAS-013	33	Redacted to protect personal privacy.
PLSAS-013	21	Redacted to protect personal privacy.
PLSAS-013	9	Redacted to protect personal privacy.
PLSAS-013	28	Redacted to protect personal privacy.
PLSAS-013	20	Redacted to protect district employee privacy.
PLSAS-013	4	Redacted to protect personal privacy.
PLSAS-013	5	Redacted to protect personal privacy.
PLSAS-013	36	Redacted to protect personal privacy.
PLSAS-013	20	Redacted to protect personal privacy.
PLSAS-013	25	Redacted to protect personal privacy.
PLSAS-013	39	Redacted to protect personal privacy.

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-014	21	Redacted to protect personal privacy.
PLSAS-014	20	Redacted to protect personal privacy.
PLSAS-014	19	Redacted to protect personal privacy.
PLSAS-014	21	Redacted to protect district employee privacy.
PLSAS-014	46	Redacted to protect personal privacy.
PLSAS-014	30	Redacted to protect personal privacy.
PLSAS-014	43	Redacted to protect personal privacy.
PLSAS-014	29	Redacted to protect personal privacy.
PLSAS-014	2	Redacted to protect personal privacy.
PLSAS-014	7	Redacted to protect personal privacy.
PLSAS-014	23	Redacted to protect personal privacy.
PLSAS-014	35	Redacted to protect personal privacy.
PLSAS-014	41	Redacted to protect personal privacy.
PLSAS-015	2	Redacted to protect personal privacy.
PLSAS-015	22	Redacted to protect personal privacy.
PLSAS-015	7	Redacted to protect personal privacy.
PLSAS-015	27	Redacted to protect personal privacy.
PLSAS-015	6	Redacted to protect personal privacy.
PLSAS-015	3	Redacted to protect personal privacy.
PLSAS-015	5	Redacted to protect personal privacy.
PLSAS-015	23	Redacted to protect personal privacy.
PLSAS-015	26	Redacted to protect personal privacy.
PLSAS-015	7	Redacted to protect district employee privacy.
PLSAS-015	27	Redacted to protect district employee privacy.
PLSAS-015	25	Redacted to protect personal privacy.
PLSAS-015	20	Redacted to protect personal privacy.
PLSAS-015	28	Redacted to protect personal privacy.
PLSAS-015	32	Redacted to protect personal privacy.
PLSAS-015	35	Redacted to protect personal privacy.
PLSAS-015	38	Redacted to protect personal privacy.
PLSAS-015	40	Redacted to protect personal privacy.
PLSAS-015	41	Redacted to protect personal privacy.
PLSAS-015	8	Redacted to protect personal privacy.
PLSAS-016	37	Redacted to protect personal privacy.
PLSAS-016	36	Redacted to protect personal privacy.
PLSAS-016	20	Redacted to protect personal privacy.
PLSAS-016	4	Redacted to protect personal privacy.
PLSAS-016	16	Redacted to protect personal privacy.
PLSAS-016	24	Redacted to protect personal privacy.
PLSAS-017	17	Redacted to protect personal privacy.
PLSAS-017	33	Redacted to protect personal privacy.
PLSAS-017	4	Redacted to protect personal privacy.
PLSAS-017	22	Redacted to protect personal privacy.
PLSAS-017	5	Redacted to protect personal privacy.
PLSAS-017	23	Redacted to protect personal privacy.
PLSAS-017	2	Redacted to protect personal privacy.
PLSAS-017	18	Redacted to protect personal privacy.
PLSAS-017	20	Redacted to protect personal privacy.
PLSAS-017	34	Redacted to protect personal privacy.
PLSAS-017	4	Redacted to protect district employee privacy.
PLSAS-017	22	Redacted to protect district employee privacy.
PLSAS-017	3	Redacted to protect personal privacy.
PLSAS-017	31	Redacted to protect personal privacy.
PLSAS-017	25	Redacted to protect personal privacy.
PLSAS-017	10	Redacted to protect personal privacy.
PLSAS-017	7	Redacted to protect personal privacy.
PLSAS-019	8	Redacted to protect personal privacy.
PLSAS-019	7	Redacted to protect personal privacy.
PLSAS-019	6	Redacted to protect personal privacy.
PLSAS-019	7	Redacted to protect district employee privacy.

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-019	9	Redacted to protect personal privacy.
PLSAS-019	36	Redacted to protect personal privacy.
PLSAS-019	2	Redacted to protect personal privacy.
PLSAS-021	5	Redacted to protect personal privacy.
PLSAS-021	28	Redacted to protect personal privacy.
PLSAS-021	33	Redacted to protect personal privacy.
PLSAS-021	35	Redacted to protect personal privacy.
PLSAS-021	19	Redacted to protect personal privacy.
PLSAS-021	34	Redacted to protect personal privacy.
PLSAS-021	18	Redacted to protect personal privacy.
PLSAS-021	6	Redacted to protect personal privacy.
PLSAS-021	17	Redacted to protect personal privacy.
PLSAS-021	27	Redacted to protect personal privacy.
PLSAS-021	32	Redacted to protect personal privacy.
PLSAS-021	18	Redacted to protect district employee privacy.
PLSAS-021	34	Redacted to protect district employee privacy.
PLSAS-021	14	Redacted to protect district employee privacy.
PLSAS-021	4	Redacted to protect personal privacy.
PLSAS-021	14	Redacted to protect personal privacy.
PLSAS-021	20	Redacted to protect personal privacy.
PLSAS-022	32	Redacted to protect personal privacy.
PLSAS-023	38	Redacted to protect personal privacy.
PLSAS-023	41	Redacted to protect personal privacy.
PLSAS-023	20	Redacted to protect personal privacy.
PLSAS-023	33	Redacted to protect personal privacy.
PLSAS-023	39	Redacted to protect personal privacy.
PLSAS-024	6	Redacted to protect personal privacy.
PLSAS-024	7	Redacted to protect personal privacy.
PLSAS-025	36	Redacted to protect personal privacy.
PLSAS-025	44	Redacted to protect personal privacy.
PLSAS-025	13	Redacted to protect personal privacy.
PLSAS-025	15	Redacted to protect personal privacy.
PLSAS-025	41	Redacted to protect personal privacy.
PLSAS-026	20	Redacted to protect personal privacy.
PLSAS-026	24	Redacted to protect personal privacy.
PLSAS-026	27	Redacted to protect personal privacy.
PLSAS-026	26	Redacted to protect personal privacy.
PLSAS-026	25	Redacted to protect personal privacy.
PLSAS-026	21	Redacted to protect personal privacy.
PLSAS-026	23	Redacted to protect personal privacy.
PLSAS-026	25	Redacted to protect district employee privacy.
PLSAS-026	9	Redacted to protect personal privacy.
PLSAS-028	15	Redacted to protect personal privacy.
PLSAS-028	20	Redacted to protect personal privacy.
PLSAS-028	29	Redacted to protect personal privacy.
PLSAS-028	31	Redacted to protect personal privacy.
PLSAS-028	21	Redacted to protect personal privacy.
PLSAS-028	30	Redacted to protect personal privacy.
PLSAS-028	16	Redacted to protect personal privacy.
PLSAS-028	19	Redacted to protect personal privacy.
PLSAS-028	27	Redacted to protect personal privacy.
PLSAS-028	21	Redacted to protect district employee privacy.
PLSAS-028	30	Redacted to protect district employee privacy.
PLSAS-028	20	Redacted to protect district employee privacy.
PLSAS-028	29	Redacted to protect district employee privacy.
PLSAS-028	13	Redacted to protect personal privacy.
PLSAS-028	22	Redacted to protect personal privacy.
PLSAS-029	19	Redacted to protect personal privacy.
PLSAS-029	20	Redacted to protect personal privacy.
PLSAS-029	16	Redacted to protect personal privacy.

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-029	20	Redacted to protect district employee privacy.
PLSAS-029	19	Redacted to protect district employee privacy.
PLSAS-029	15	Redacted to protect personal privacy.
PLSAS-029	17	Redacted to protect personal privacy.
PLSAS-031	4	Redacted to protect personal privacy.
PLSAS-031	10	Redacted to protect personal privacy.
PLSAS-031	11	Redacted to protect personal privacy.
PLSAS-031	32	Redacted to protect personal privacy.
PLSAS-031	35	Redacted to protect personal privacy.
PLSAS-031	37	Redacted to protect personal privacy.
PLSAS-031	39	Redacted to protect personal privacy.
PLSAS-032	3	Redacted to protect personal privacy.
PLSAS-032	16	Redacted to protect personal privacy.
PLSAS-032	23	Redacted to protect personal privacy.
PLSAS-032	25	Redacted to protect personal privacy.
PLSAS-032	27	Redacted to protect personal privacy.
PLSAS-032	28	Redacted to protect personal privacy.
PLSAS-032	32	Redacted to protect personal privacy.
PLSAS-032	33	Redacted to protect personal privacy.
PLSAS-032	40	Redacted to protect personal privacy.
PLSAS-033	11	Redacted to protect personal privacy.
PLSAS-033	36	Redacted to protect personal privacy.
PLSAS-035	5	Redacted to protect personal privacy.
PLSAS-035	7	Redacted to protect personal privacy.
PLSAS-035	22	Redacted to protect personal privacy.
PLSAS-035	24	Redacted to protect personal privacy.
PLSAS-035	6	Redacted to protect personal privacy.
PLSAS-035	23	Redacted to protect personal privacy.
PLSAS-035	18	Redacted to protect personal privacy.
PLSAS-035	11	Redacted to protect personal privacy.
PLSAS-035	13	Redacted to protect personal privacy.
PLSAS-035	16	Redacted to protect personal privacy.
PLSAS-035	25	Redacted to protect personal privacy.
PLSAS-035	8	Redacted to protect personal privacy.
PLSAS-035	2	Redacted to protect personal privacy.
PLSAS-035	21	Redacted to protect personal privacy.
PLSAS-036	10	Redacted to protect personal privacy.
PLSAS-036	22	Redacted to protect personal privacy.
PLSAS-036	28	Redacted to protect personal privacy.
PLSAS-036	7	Redacted to protect personal privacy.
PLSAS-036	5	Redacted to protect personal privacy.
PLSAS-036	8	Redacted to protect personal privacy.
PLSAS-036	11	Redacted to protect personal privacy.
PLSAS-036	23	Redacted to protect personal privacy.
PLSAS-036	27	Redacted to protect personal privacy.
PLSAS-036	37	Redacted to protect personal privacy.
PLSAS-036	12	Redacted to protect personal privacy.
PLSAS-036	29	Redacted to protect personal privacy.
PLSAS-036	18	Redacted to protect personal privacy.
PLSAS-036	30	Redacted to protect personal privacy.
PLSAS-036	6	Redacted to protect personal privacy.
PLSAS-036	13	Redacted to protect personal privacy.
PLSAS-036	21	Redacted to protect personal privacy.
PLSAS-037	6	Redacted to protect personal privacy.
PLSAS-037	20	Redacted to protect personal privacy.
PLSAS-037	24	Redacted to protect personal privacy.
PLSAS-037	3	Redacted to protect personal privacy.
PLSAS-037	4	Redacted to protect personal privacy.
PLSAS-037	7	Redacted to protect personal privacy.
PLSAS-037	14	Redacted to protect personal privacy.

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-037	21	Redacted to protect personal privacy.
PLSAS-037	23	Redacted to protect personal privacy.
PLSAS-037	8	Redacted to protect personal privacy.
PLSAS-037	25	Redacted to protect personal privacy.
PLSAS-037	16	Redacted to protect personal privacy.
PLSAS-037	2	Redacted to protect personal privacy.
PLSAS-037	19	Redacted to protect personal privacy.
PLSAS-038	23	Redacted to protect personal privacy.
PLSAS-038	24	Redacted to protect personal privacy.
PLSAS-038	15	Redacted to protect personal privacy.
PLSAS-038	27	Redacted to protect personal privacy.
PLSAS-038	12	Redacted to protect personal privacy.
PLSAS-038	3	Redacted to protect personal privacy.
PLSAS-038	13	Redacted to protect personal privacy.
PLSAS-038	16	Redacted to protect personal privacy.
PLSAS-038	28	Redacted to protect personal privacy.
PLSAS-038	17	Redacted to protect personal privacy.
PLSAS-038	26	Redacted to protect personal privacy.
PLSAS-038	11	Redacted to protect personal privacy.